

		maneuver during which he contends Kayla tripped his foot from under him resulting in his fall. (UMF Nos. 21, 22). Defendants knew Kayla to be a sweet, well-mannered, and sporty girl, and she had been to the Residence on numerous occasions before the incident. (UMF Nos. 24, 25). At no time during any of Kayla's prior visits to the Residence did she injure or trip anyone, nor were Defendants aware of any prior incident where she tripped or injured another person. (UMF Nos. 26, 27). At the time of the incident, Defendants were unaware of any potentially dangerous propensity of Kayla, nor did they believe that she posed any danger to the other invited guests at the Residence. (UMF No. 28). As such, it is undisputed that the incident occurred at a location that was not located on Defendants' property and Defendants did not own. (UMF Nos. 6-9.) It is also undisputed that Defendants did not have any reason to be worried about the safety of the group playing basketball at the hoop. (UMF Nos. 10-12.) It is further undisputed that Defendants were unaware of any dangerous propensity of Kayla, and did not believe that she posed any danger to the other invited guests at the Residence. (UMF Nos. 24-28.) Plaintiff has not opposed the motion and otherwise presents no evidence demonstrating that Defendants owed any duty to Plaintiff based on a special relationship between Plaintiff and Defendants or Plaintiff and Kayla. Plaintiff has similarly presented no evidence that Defendants had any prior knowledge of any propensity by Kayla to trip or injure another person or that they otherwise had a duty to control Kayla's conduct. Accordingly, the Court GRANTS Defendants Tracey Finney and Bradley Finney's motion for summary judgment.
9	2022-01256458 <i>Reshotkin vs. Sasco</i>	Motion to Be Relieved as Counsel of Record The motion of attorney Sandeep J. Shah to be relieved as counsel for plaintiff Kirill Reshotkin is GRANTED. (Code Civ. Proc., § 284; Cal. Rules of Court, rule 3.1362.) Attorney will be relieved as counsel of record for client effective upon filing of a proof of service of the Court's signed order on client. Moving attorney is to give notice.
10	2024-01442750 <i>Reyes vs. Cordova</i>	Motion to Be Relieved as Counsel of Record Motion to Be Relieved as Counsel of Record Attorney Sergio Alejandro Copete's motion to be relieved as counsel for Plaintiff Jorge Reyes is DENIED without prejudice. Rule of Court 3.1362 governs motions to be relieved as counsel. The court has reviewed the materials submitted by the moving party, Attorney Sergio Alejandro Copete, and finds that counsel did not properly confirm Plaintiff's address to be current as required by rule 3.1326, subdivision (d). Attorney Copete has not shown he made reasonable efforts to locate a more current address for Plaintiff.

		Attorney Sergio Alejandro Copete to give notice.
11	2025-01458863 <i>Satin vs. HH Law Firm</i>	1) Motion to Compel Answers to Form Interrogatories 2) Motion to Deem Facts Admitted (Continued from 11/6) <u>Motion #1</u> The motion of plaintiffs Ken Satin and Advocate Law Firm for an order compelling defendant HH Law Firm to serve a complete, substantive, Code-compliant, and verified response to the first set of form interrogatories is DENIED, as is the request for a monetary sanction. <u>Motion #2</u> The motion of plaintiffs Ken Satin and Advocate Law Firm, PC, for an order deeming the matters specified in the first set of requests for admissions propounded to defendant HH Law Firm admitted is DENIED, as is their request for a monetary sanction of \$21,245.00. Defendant's request for a monetary sanction is also denied because there is no evidence on which the Court may base that sanction.
12	2021-01226723 <i>Software Freedom Conservancy, Inc. vs. Vizio, Inc.</i>	Motion for Summary Judgment and/or Adjudication Defendant Vizio, Inc.'s Motion for Summary Adjudication is DENIED. Plaintiff Software Freedom Conservancy, Inc.'s Objections to Defendant's Memorandum of Points and Authorities and Separate Statement are overruled. Plaintiff may object to specified evidence, not argument or facts. (See Rules of Court, Rule 3.1354; Code Civ. Proc. § 437c(c & q).) Plaintiff's objections to the Williams Declaration are overruled. Plaintiff's objections to Defendant's exhibits are overruled. Defendant's objections to evidence are also overruled. The Court has reviewed Defendant's Amended Separate Statement of Facts, filed on 7/11/25 under ROA 530, which identifies the issues applicable to each fact. Defendant's separate statement sufficiently identifies the issues for summary adjudication under Rule 3.1350 and the Court will address the merits of the motion. <u>Legal Standard:</u> <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 849 (cleaned up, quoting Code Civ. Proc. § 437c), holds: "In moving for summary judgment, a defendant has met his burden of showing that a cause of action has no merit if he has shown that one or more elements of the cause of action cannot be established, or that there is a complete defense to that cause of action. Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. The plaintiff may not rely upon the mere allegations or denials of his pleadings to show that a triable issue of material fact exists